

CITY OF BOULDER
CITY COUNCIL MEETING
Via Video Conferencing
Tuesday, December 15, 2021

MINUTES

1. Call to Order and Roll Call

Mayor Weaver called the meeting to order at 6:00 p.m.

Council Members Brockett, Friend, Joseph, Swetlick, Wallach, Yates and Young were present virtually; Council Member Nagle absent

COUNCIL MEMBER YATES MADE A MOTION TO AMEND THE AGENDA TO REMOVE ITEM 1A DECLARATION IN HONOR OF NINO GALLO AND ITEM 6A NEW WEBSITE UPDATE/DEMO. COUNCIL MEMBER YOUNG SECONDED THE MOTION. THE MOTION PASSED 8:0 AT 6:04 P.M. WITH COUNCIL MEMBER NAGLE ABSENT.

A. Declaration in honor of outgoing Boulder County Commissioners Deb Gardner and Elise Jones

2. Open Comment

(Public comments are a summary of actual testimony. Full testimony is available on the council web page at: <https://bouldercolorado.gov/city-council> > Watch Live or Archived Meetings.)

Open Comment began at 6:16 p.m.

1. Phillip Doe signed up to speak but did not
2. Alexia Parkos spoke about homelessness and the eviction process
3. Evan Ravitz spoke about direct democracy
4. Joy Sanchez Dixon signed up to speak but did not
5. Eric Tussey spoke about Boulder reservoir facilities
6. Gary Urling spoke about crime and enforcement
7. Bijan Jooben spoke about management of commercial properties
8. Misha Toor signed up to speak but did not
9. Kristi Russell signed up to speak but did not
10. Shirley Schallet spoke about proposed restaurant at Boulder reservoir
11. Joy Sanchez Dixon spoke about commercial tenancy dispute
12. Deborah van den Honert spoke about racial equity plan
13. Lynn Segal spoke about growth impact
14. Sharon Anderson spoke about Boulder reservoir restaurant
15. Tannis Sampson spoke about Boulder reservoir
16. Shawn Rodda spoke about Cannabis Licensing Advisory Board appointments
17. Kim Bixel spoke about alcohol events at Boulder reservoir
18. Patrick Murphy spoke about climate change – carbon reduction

19. Ryan Harwood spoke about the police bomb truck

Open Comment closed at 6:49 p.m.

3. Consent Agenda

- A. Consideration of a motion to approve the November 10, 2020 Special Meeting Minutes
- B. Consideration of a motion to approve the November 17, 2020 Regular Meeting Minutes
- C. Consideration of a motion to approve the December 1, 2020 Regular Meeting Minutes
- D. Consideration of a motion authorizing the city manager to enter into a settlement agreement relating to a claim by Allison Jedamus
- E. Consideration of a motion to amend Resolution 1223 allowing for continuation of the Rocky Flats Stewardship Council and a second amendment to the intergovernmental agreement establishing that public entity
- F. Introduction, first reading, and consideration of a motion to order published by title only Ordinance 8432 amending Sections 10-12-25 “Limitation on the Prohibition Sales of Mobile Homes,” and 10-12-26 “Limitation on Required Upgrades to Existing Mobile Homes”; and setting forth related details
- G. Introduction, first reading and consideration of a motion to order published by title only and adopt by emergency measure Ordinance 8437 adopting Supplement 145, which codifies previously adopted ordinances and other miscellaneous corrections and amendments as an amendment to the Boulder Revised Code, 1981; and setting forth related details.
- H. Third reading and consideration of a motion to adopt Ordinance 8439 amending Chapter 3-13, “Utility Occupation Tax,” B.R.C. 1981, to implement the voter approved changes presented in Ordinance 8417 to amend, repurpose and extend the Utility Occupation Tax; and setting forth related details.

COUNCIL MEMBER YATES MADE A MOTION TO APPROVE THE CONSENT AGENDA ITEMS A-H, EXCEPT FOR ITEM 3F. COUNCIL MEMBER WALLACH SECONDED THE MOTION. THE MOTION PASSED 8:0 AT 7:11 P.M. WITH COUNCIL MEMBER NAGLE ABSENT.

4. Call-Up Check-In

- A. Call-up Consideration: Landmark Alteration Certificate for construction of an in-ground pool at 643 Mapleton Avenue, an individual landmark and contributing property in the Mapleton Hill Historic District

No action

5. Public Hearings

- A. Amend the BVCP Land Use Map, Planning Areas Map, policy and text, and extend the term of the Boulder Valley Comprehensive Development Plan IGA as part of the 2020 Mid-Term Update to the Boulder Valley Comprehensive Plan.

Senior Planner Jean Gatza provided information regarding the changes to the Land Use and Planning Area and to the policy and text as well as amending the Intergovernmental Governmental Agreement to extend the term.

The public hearing opened at 7:50 p.m. and the following spoke regarding amending the BVCP Land Use Map, Planning Areas Map, policy and text, and extend the term of the Boulder Valley Comprehensive Development Plan IGA as part of the 2020 Mid-Term Update to the Boulder Valley Comprehensive Plan.

1. Donna George pooled time with Mark George and Sara George
2. Alexia Parks
3. Laura Sheinbaum
4. Kit Fuller
5. Julie Dye
6. Lynn Segal

The public hearing closed at 8:13 p.m.

COUNCIL MEMBER BROCKETT MADE A MOTION TO APPROVE THE LAND USE MAP AND PLANNING AREAS MAP CHANGES TO THE BOULDER VALLEY COMPREHENSIVE PLAN AS SHOWN AND DESCRIBED IN THE STAFF MEMO AND IN ATTACHMENTS A-I. COUNCIL MEMBER YATES SECONDED THE MOTION. THE MOTION PASSED 8:0 AT 8:51 P.M. WITH COUNCIL MEMBER NAGLE ABSENT.

COUNCIL MEMBER BROCKETT MADE A MOTION TO APPROVE THE POLICY AND TEXT CHANGES TO THE BOULDER VALLEY COMPREHENSIVE PLAN AS SHOWN AND DESCRIBED IN ATTACHMENTS J. COUNCIL MEMBER YATES SECONDED THE MOTION. THE MOTION PASSED 8:0 AT 8:51 P.M. WITH COUNCIL MEMBER NAGLE ABSENT.

COUNCIL MEMBER BROCKETT MADE A MOTION TO AMEND THE BOULDER VALLEY COMPREHENSIVE PLAN INTERGOVERNMENTAL AGREEMENT BETWEEN THE CITY OF BOULDER AND BOULDER COUNTY TO EXTEND THE TERM AN ADDITIONAL FIVE YEARS TO DECEMBER 31, 2042 AS SHOWN IN THE AMENDMENT IN ATTACHMENT K.

COUNCIL MEMBER YATES SECONDED THE MOTION. THE MOTION PASSED 8:0 AT 8:51 P.M. WITH COUNCIL MEMBER NABLE ABSENT.

- B. Second reading and consideration of a motion to adopt Ordinance 8403 Amending Section 13-1-4, B.R.C. 1981, "Initiatives and Referendum," Clarifying Election Procedures for Direct Legislation, Including Initiatives, Referenda and Recall; and adding a new Section 13-1-7, "Online Petitions," Implementing the Charter Provision Allowing for Electronic Signatures on Petitions for Initiatives, Referenda And Recalls; and Setting Forth Details in Relation Thereto

The public hearing opened at 9:06 p.m. and the following spoke regarding adopt Ordinance 8403 Amending Section 13-1-4, B.R.C. 1981, "Initiatives and Referendum," Clarifying Election Procedures for Direct Legislation, Including Initiatives, Referenda and Recall; and adding a new Section 13-1-7, "Online Petitions," Implementing the Charter Provision Allowing for Electronic Signatures on Petitions for Initiatives, Referenda And Recalls; and Setting Forth Details in Relation Thereto.

1. Peter Mayer
2. Steve Pomerance
3. Giselle Herzfeld
4. Lynn Segal
5. Evan Ravitz
6. Chelsea Castellano
7. Eric Budd

The public hearing closed at 9:26 p.m.

COUNCIL MEMBER BROCKETT MADE A MOTION TO ADOPT ORDINANCE 8403 AMENDING SECTION 13-1-4, B.R.C. 1981, "INITIATIVES AND REFERENDUM," CLARIFYING ELECTION PROCEDURES FOR DIRECT LEGISLATION, INCLUDING INITIATIVES, REFERENDA AND RECALL; AND ADDING A NEW SECTION 13-1-7, "ONLINE PETITIONS," IMPLEMENTING THE CHARTER PROVISION ALLOWING FOR ELECTRONIC SIGNATURES ON PETITIONS FOR INITIATIVES, REFERENDA AND RECALLS; AND SETTING FORTH DETAILS IN RELATION THERETO. COUNCIL MEMBER YOUNG SECONDED THE MOTION. THE MOTION PASSED 8:0 AT XXX P.M. WITH COUNCIL MEMBER NAGLE ABSENT.

6. Matters from the City Manager
 7. Matters from the City Attorney
 8. Matters from the Mayor and Members of Council
- A. Consideration of motion to appoint two (2) non-voting, ex officio members to the Cannabis Licensing Advisory Board (Public Hearing)

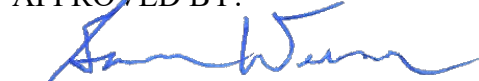
COUNCIL MEMBER YATES MADE A MOTION TO APPOINT ALLISON BAYLEY TO SEAT #8 AND KATHRYN THOMSON TO SEAT #9 ON THE CANNABIS LICENSING ADVISORY BOARD, EACH FOR A 4+ YEAR TERM ENDING ON 3/31/2025. COUNCIL MEMBER WALLACH SECONDED THE MOTION. THE MOTION PASSED 8:0 AT 10:20 P.M. WITH COUNCIL MEMBER NAGLE ABSENT.

9. Discussion Items
10. Debrief
11. Adjournment

THERE BEING NO FURTHER BUSINESS TO COME BEFORE COUNCIL AT THIS TIME, BY MOTION REGULARLY ADOPTED, THE MEETING WAS ADJOURNED ON DECEMBER 15, 2020 AT 10:21 P.M.

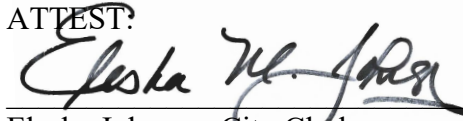
Approved this 16TH day of February, 2021.

APPROVED BY:



Sam Weaver, Mayor

ATTEST:



Elesha Johnson, City Clerk.